



GRETCHEN WHITMER
GOVERNOR

STATE OF MICHIGAN
DEPARTMENT OF
ENVIRONMENT, GREAT LAKES, AND ENERGY
GAYLORD DISTRICT OFFICE



LIESL EICHLER CLARK
DIRECTOR

May 23, 2022

VIA EMAIL

Jeffrey Dietlin, Director of Utilities
City of Cadillac
200 North Lake Street
Cadillac, Michigan 49601

Dear Jeffrey Dietlin:

SUBJECT: Follow-up to Violation Notices VN-012230 and VN-011108
Industrial Pretreatment Program (IPP)
National Pollutant Discharge Elimination System Permit No. MI0020257
Designated Name: Cadillac WWTP

On May 2, 2022, the Department of Environment, Great Lakes, and Energy (EGLE), Water Resources Division (WRD), received a written request from Charles Barbieri on behalf of the City of Cadillac for an extension to respond to VN-012230 dated September 30, 2021, and follow-up correspondence dated November 4, 2021. As discussed during our telephone conversation on May 6, 2022, the response is not expected to include completion of the requested corrections. The initial response requested was to provide a Corrective Action Plan (CAP) and schedule of work to correct the deficiencies as stated in VN-012230 and VN-011108 dated October 22, 2020, to provide copies of the information necessary to determine if Cadillac Casting, Inc. (CCI) is a categorical industrial user subject to the pretreatment standards under 40 CFR Part 464 (Part 464), and a proposed schedule to bring CCI into compliance with the categorical standards. Please refer to VN-012230 and VN-011108 for details of the expected response. On May 9, 2022, the WRD received the requested CAP and schedule to complete a Maximum Allowable Headworks Loading (MAHL) study, revise the IPP Procedures Manual, revise the local limits, as necessary, and revise the Industrial User (IU) Permits. The requested information regarding the categorical classification of the CCI facility, and a proposed schedule to bring the facility into compliance have not yet been received. The WRD has no objection to extending the deadline for the response to these remaining items to November 4, 2022. The WRD has reviewed the proposed CAP and has the following comments:

1. While the proposed plan includes revisions to the IU Permits, it is unclear if the revisions are intended to be limited to updating the local limits in the IU Permits. The current IU Permit issued to CCI states that this facility is a Categorical Industrial User (CIU) subject to the pretreatment standards under Part 464, Subpart C (Metal Molding and Casting Category, Ferrous Casting Subcategory). If the information collected on CCI indicates the facility is a CIU, then the updates to the IU Permits must include appropriate categorical limits and corrections to other deficiencies as noted in VN-012230.

2. VN-012230 included a requirement to complete the in-progress revisions to the AAR Rinse Tank IU Permit as required under VN-011108. The update to the IU Permits must include the required revisions to the AAR Rinse Tank IU Permit.

Please submit the following information, as requested in VN-012230, by November 4, 2022:

A description of the processes discharging to the sanitary sewer at the CCI facility and volume of facility flow. The description must include a process diagram indicating points of discharge to the sanitary sewer and from which processes the discharges originate. The submission must also include either a written determination of the type of industrial user (SIU or CIU category) or a request for a categorical determination by EGLE including the items required under R 323.2311(b). If it is determined that CCI is a CIU, the response must also include a plan and proposed schedule to bring CCI into compliance with the categorical pretreatment standards.

On April 22, 2022, the WRD also received the revised MAHL study plan from Elaine Venema of Fleis & Vandenbrink, on behalf of the City of Cadillac, in response to the WRD's initial comments. WRD staff have reviewed the revised MAHL plan and find the revised plan to be acceptable, however we have the following recommendations:

1. The revised plan states that sampling will be conducted for 1,2-Dichlorobenzene, Chloroform, Ethylbenzene, Phenol, Toluene, Lindane, PCBs, Total Xylene, and Styrene (collectively referred to as the non-standard pollutants of concern (POC)) by collecting four grab samples per day over four days in the collection system (representative domestic sample locations #1 and #2), within the wastewater treatment plant (WWTP Raw Influent, WWTP Primary Effluent, and WWTP Final Effluent) and at each Significant Industrial User (SIU). While the stated schedule appears appropriate for sampling of the SIU locations to determine if the non-standard POCs are present in the wastestream at these facilities, it is recommended that sampling in the collection system and within the WWTP conforms to the sampling schedule for the compatible and non-compatible POCs (i.e., six days of sampling over a period of four weeks). This is recommended because this schedule meets the minimum requirement under Michigan Administrative Code Part 23, Pretreatment, for the evaluation of local limits, which is required for all POCs. If the technical review of the non-standard POCs determines that any of these pollutants is still a POC, additional sampling would be required under the proposed four days of sampling to provide sufficient representative data to determine the local limit.
2. The plan states that sampling will be conducted at each SIU for the non-standard POCs. The U.S. Environmental Protection Agency (EPA) Local Limits Development Guidance Manual states that a publicly owned treatment works should have a complete understanding of the untreated wastestream of each IU before removing a local limit. The City of Cadillac should be aware that to achieve this it may be necessary to sample in more than one location at some SIUs, as there may not be a single point where it is possible to sample all untreated wastestreams prior to any treatment processes. Sampling of the wastestream prior to treatment is necessary before removing the local limit, as this may result in IUs ceasing effective treatment that is in place to comply with the existing local limits.

3. The proposed list of SIU sample locations includes Wexford County Landfill. It is the WRD's understanding that this facility has ceased discharge to the Cadillac WWTP and that all wastewater is now disposed of via deep well injection. If this facility is no longer discharging to the Cadillac WWTP, it is recommended the sample location is removed from the plan. The SIU sampling locations list also did not include Rec Boat Holdings, Cruiser Division. According to the most recent IPP Annual Report, Rec Boat Holdings, Cruiser Division is currently permitted as an SIU and is actively discharging under that permit. It is recommended that all currently permitted SIUs are sampled to determine if the non-standard POCs are present in the untreated wastewater.

Should you require further information regarding the above comments, the required corrective actions noted in VN-012230, or if you would like to arrange a meeting to discuss it, please contact me at LoweC9@michigan.gov; 989-330-4639; or EGLE, WRD, Gaylord District Office, 2100 West M-32, Gaylord, Michigan 49735-9282.

Sincerely,

Claire Lowe
Gaylord District Office
Water Resources Division

cc: Charles Barbieri, Foster Swift Collins & Smith PC
Elaine Venema, P.E., Fleis & Vandenbrink
Pam Willard, EGLE
Brian Jankowski, EGLE
Don Brady, EGLE